CITY OF VACAVILLE

RESOLUTION NO. 2026-106

Resolution of the City Council of the City of Vacaville Ordering the Submission to the Qualified Electors of the City at the General Municipal Election to be Held on November 3, 2026, a Measure Establishing an Additional One-Cent Sales Tax Providing Approximately Twenty-Eight Million Dollars Annually, Under Local Control with Citizens Oversight and Annual Audits Including Public Reporting, until ended by Voters and Approving the Ordinance to be Submitted to the Voters Pursuant to Revenue and Taxation Code Section 7285.9; Requesting the Solano County Elections Department to Conduct the Election and Requesting Consolidation of the General Municipal Election with the Statewide General Election to be Held on November 3, 2026; Directing the City Attorney to Prepare an Impartial Analysis Concerning Such Measure; Setting Rules for the Filing of Written Arguments Regarding Said City Measure

Whereas, pursuant to Resolution No. 2026-101, the City Council has called a general municipal election on Tuesday, November 3, 2026, for the purpose of electing municipal officers as provided therein ("General Municipal Election") and requested that the Solano County Board of Supervisors consent to the consolidation of the General Municipal Election with the Statewide General Election to be held on the same date; and

Whereas, pursuant to Article XIIIC of the California Constitution, Section 53720 et seq. of the California Government Code, the City has the authority to levy a general tax; and

Whereas, Article XIIIC, Section 2, of the California Constitution requires that the election at which a general tax increase is submitted to the electorate shall be consolidated with a regularly scheduled general election for members of the governing body of the local government; and

Whereas, Part 1.6 (commencing with Section 7251) of Division 2 of the California Revenue and Taxation Code, and Section 7285.9 of the California Revenue and Taxation Code, authorizes a city to adopt a transactions and use tax ordinance, which shall be operative if a majority of the electors voting on the measure vote to approve the imposition of the tax at an election called for that purpose; and

Whereas, Revenue and Taxation Code Section 7285.9 requires that any ballot measure/ordinance establishing a transactions and use tax must be approved by a 2/3 vote of all members of the City Council and by a majority vote of the qualified voters of the City voting on the ballot measure; and

Whereas, the measure proposed by this Resolution would establish an additional one-cent sales tax providing approximately twenty-eight million dollars annually, in effect until ended by voters of the City of Vacaville and the City Council desires to submit such measure to the

voters of the City at the November 3, 2026, General Municipal Election which was called pursuant to Resolution No. 2026-101, and

Whereas, pursuant to Elections Code Section 10400, whenever two or more elections, including bond elections, of any legislative or congressional district, public district, city, county, or other political subdivision are called to be held on the same day, in the same territory, or in territory that is in part the same, they may be consolidated upon the order of the governing body or bodies or officer or officers calling the elections; and

Whereas, it is desirable that the General Municipal Election to be held on November 3, 2026, be consolidated with the Statewide General Election to be held on the same date and that within the City the precincts, polling places and election officers of the two elections be the same, and that the County of Solano Election Department canvass the returns of such General Municipal Election and that the election be held in all respects as if there were only one election; and

Whereas, Elections Code Section 9280 requires the City Council to request an impartial analysis of any ballot measure to be submitted to the voters; and

Whereas, Elections Code Section 9282 provides for written arguments to be filed in favor of or against city measures not to exceed 300 words in length and requires the City Clerk to determine the deadline for submission of primary arguments for ballot measures submitted at municipal elections; and

Whereas, Elections Code Section 9285 further sets forth procedures for the filing of rebuttal arguments not to exceed 250 words for ballot measures submitted at municipal elections including setting the deadline for rebuttal arguments.

Now, therefore, the City Council of the City of Vacaville California, does resolve and order as follows:

1. Recitals. The recitals set forth above are incorporated herein by this reference.

2. Submission of Measure. Pursuant to the laws of the State of California, including, but not limited to, Elections Code Sections 9222 and 10201, the City Council, pursuant to its right and authority, does hereby order the submission to the voters of the City at the General Municipal Election to be held on November 3, 2026, which was called pursuant to Resolution No. 2026-101, a ballot measure that, if approved, establishes an additional one-cent sales tax providing approximately twenty-eight million dollars annually, under local control with citizens oversight and annual audits including public reporting, until ended by voters ("Measure"). As required by Elections Code Section 13247, the abbreviated form of the Measure to appear on the ballot is specified below in Section 3.

3. Question. Accordingly, the City Council hereby orders the following question to be submitted to the voters at the General Municipal Election:

Vacaville Essential Services Measure of 2026. Shall the citizens of Vacaville adopt a measure maintaining the City's financial stability and essential services—including 911 emergency response; fire and ambulance protection; crime prevention; parks and recreation; safe public spaces; supporting local businesses; repairing streets; and other general City services—by establishing an additional one-cent sales tax providing approximately twenty-eight million dollars annually, with local control, citizens oversight, annual audits, and public reporting, until ended by voters?"	YES	
	NO	

4. Proposed Measure. The proposed complete text of the Measure with the proposed Ordinance No. 2023 to be submitted to the voters is attached to this Resolution as Exhibit A and incorporated herein by this reference. Further, pursuant to Revenue and Taxation Code Section 7285.9, the City Council hereby approves the proposed complete text of the Measure with the proposed Ordinance No. 2023 in the form as provided in Exhibit A and the submission thereof to the voters of the City.

5. Voter Approval Requirement. The vote requirement for this Measure to pass shall be a majority of those casting ballots on the Measure (50% plus 1).

6. Publication of Measure. The City Clerk is directed to publish a synopsis of the Measure in a newspaper of general circulation in the City of Vacaville as required by applicable law.

7. Coordination. The City Clerk is authorized, instructed, and directed to coordinate with the Solano County Elections Department to procure and furnish and all official ballots, notices, printed matter, and all supplies, equipment, and paraphernalia that may be necessary in order to properly and lawfully conduct the election.

8. Request for Consolidation.
   a. Pursuant to the requirements of Elections Code Section 10403, the Board of Supervisors of the County of Solano is hereby requested to consent and agree to the consolidation of the General Municipal Election with the Statewide General Election on Tuesday, November 3, 2026, for the purpose of submitting to the voters the abovementioned Measure.

   b. The Solano County Elections Department is authorized to canvass the returns of the General Municipal Election. The election shall be held in all respects as if there were only one election, and only one form of ballot shall be used. The election will be held and conducted in accordance with the provisions of law regulating the statewide elections, including, but not limited to, Elections Code Section 10418.

   c. The Board of Supervisors of the County of Solano is requested to issue instructions to the Solano County Elections Department to take any and all steps necessary for conducting and holding the consolidated election.

d. The City of Vacaville recognizes that additional costs will be incurred by the County of Solano by reason of this consolidation and agrees to reimburse the County of Solano for any costs.

9. Filing with County. The City Clerk shall file a certified copy of this Resolution with the Solano County Board of Supervisors and Solano County Elections Department.

10. City Attorney Impartial Analysis.

a. Impartial Analysis
The City Council directs the City Clerk to transmit a copy of the Measure to the City Attorney. Pursuant to Elections Code Section 9280, the City Attorney shall prepare an impartial analysis of the Measure not exceeding 500 words showing the effect of the Measure on existing law and the operation of the Measure. The analysis shall include a statement indicating whether the Measure was placed on the ballot by a petition signed by the requisite number of voters or by the City Council. In the event the entire text of the Measure is not printed on the ballot, nor in the voter information portion of the voter information guide, there shall be printed immediately below the impartial analysis, in no less than 10-point type, the following: "The above statement is an impartial analysis of Ordinance 2023. If you desire a copy of the ordinance or measure, please call the City Clerk's office at (707-449-5199) and a copy will be mailed at no cost to you." The impartial analysis shall be filed by 4:00 p.m. on August 12, 2026.

11. Rules for the filing of Written Arguments.

a. Primary Arguments.

i. A primary argument in favor or against the Measure shall not exceed 300 words in length and shall be accompanied by the printed name(s) and signature(s) of the author(s) submitting it, or, if on behalf of an organization, the name of the organization, and the printed name and signature of at least one of its principal officers who is the author of the argument, in accordance with Article 4, Chapter 3, Division 9 of the Elections Code. Primary arguments shall be accompanied by the Form of Statement to Be Filed By Author(s) of Argument. Submittals of primary arguments are to be delivered to the City Clerk no later than 2:00 p.m. on August 14, 2026, and may be changed or withdrawn up and until such date and time.

ii. In the event that more than one argument in favor or against the foregoing Measure is timely submitted, then consistent with Elections Code Section 9287, the City Clerk shall select the argument to be included with the ballot materials, giving preference and priority first, to arguments submitted by member(s) of the City Council, and second, to individual voters, or bona fide associations of citizens, or a combination thereof, in the order set forth in Elections Code Section 9287.

b. Rebuttal Arguments.

i. Pursuant to Section 9285 of the Elections Code of the State of California, rebuttal arguments shall be permitted for the Measure. All previous resolutions providing for the filing of rebuttal arguments for City measures, if any, are repealed.

ii. When the City Clerk has selected the primary arguments for and against the Measure (not exceeding 300 words each), which will be printed and distributed to the voters, the City Clerk shall send a copy of an argument in favor of the Measure to the authors of any argument against the Measure and a copy of an argument against the Measure to the authors of any argument in favor of the Measure immediately upon receiving the arguments.

iii. The author or a majority of the authors of an argument relating to a city measure may prepare and submit a rebuttal argument not exceeding 250 words or may authorize in writing any other person or persons to prepare, submit, or sign the rebuttal argument. A rebuttal argument may not be signed by more than five authors.

iv. The rebuttal arguments shall be filed with the City Clerk, signed, with the printed name(s) and signature(s) of the author(s) submitting it, or if submitted on behalf of an organization, the name of the organization, and the printed name and signature of at least one of its principal officers, by 2:00 p.m. on August 18, 2026. The rebuttal arguments shall be accompanied by the Form of Statement to be Filed by Author(s) of Argument. Rebuttal arguments shall be printed in the same manner as the direct arguments. Each rebuttal argument shall immediately follow the direct argument which it seeks to rebut.

12. Notice of Election. Notice of the time and place of holding the election is given and the City Clerk is authorized, instructed and directed to give further or additional notice of the election, in time, form and manner as required by law.

13. Conduct of Election as Provided by Law. In all particulars not recited in this Resolution, the General Municipal Election shall be held and conducted as provided by law for holding municipal elections.

14. Implementation. The City Clerk and City Manager are authorized to take all actions as necessary to effectuate the purposes of this Resolution and the election. The City Manager is authorized to execute all documents and to perform all other necessary City acts to enter into a service agreement for the provision of election services with Solano County Elections Department. The City Manager is authorized to make any typographical, clerical, and non-substantive corrections and such other revisions as may be required by the California Department of Fee and Tax Administration to this Resolution and its exhibits/attachments.

15. Printing of Impartial Analysis and Arguments. The City Clerk shall cause the City Attorney's impartial analysis, and duly selected arguments, to be printed and distributed to voters in accordance with State law regarding the same.

16. Printing of Measure. The City Council of the City of Vacaville hereby requests that the Solano County Elections Department print the attached full Measure text as provided in Exhibit A exactly as filed or indicated on the filed document in the voter information guide for the November 3, 2026, Statewide General Election.

17. Certification. That the City Clerk shall certify to the passage and adoption of this resolution.

18. Effective Date. This Resolution shall take effect immediately following passage and adoption by the Vacaville City Council.

I hereby certify that the foregoing resolution was introduced and passed at the regular meeting of the City Council of the City of Vacaville held on the 23rd day of June, 2026 by the following vote:

Ayes: Councilmembers Stockton, Ritchie, Chapman, Fremouw, Wylie, Vice Mayor Silva, and Mayor Carli

Noes: None

Absent: None

Attest:

[redacted]

Michelle A. Thornbrugh, City Clerk